

CASE SUMMARY

State v. Smt. Rakhi

Ct. Case No. 459/2024 | PS Inder Puri | Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi
JUDGE	Sh. Syed Zishan Ali, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: date of inspection)
PARTIES	State (Tata Power Delhi Distribution Ltd.) v. Smt. Rakhi (alleged consumer of the inspected premises)
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. The prosecution failed to prove that the accused was the resident/consumer of the inspected premises, her own Aadhaar showing a different address. The accused stands acquitted of the charge under Section 135 read with Section 150 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused Smt. Rakhi abstracted, or abetted the abstraction of, electricity at the inspected premises through a direct tap, so as to attract Section 135 read with Section 150 of the Electricity Act, 2003; and whether the prosecution proved that she was the consumer/user of those premises.

FACTS

An enforcement team of TPDDL alleged direct tapping of the licensee’s network at the inspected premises (a connected load of about 11 KW, assessed at about Rs. 2.55 lakh) and named Smt. Rakhi as the consumer. Her Aadhaar card, however, recorded a different address, and the prosecution led no cogent evidence that she resided at or used the inspected premises.

On a complaint under Section 135 read with Section 150, the accused pleaded not guilty and denied being the resident/consumer. The prosecution examined its officials; under Section 313 Cr.P.C. the accused denied the allegations and led no defence evidence.

REASONING OF THE COURT

HEADNOTE

Where the accused's own identity document shows a different address and the prosecution leads no reliable proof that she resided at or consumed electricity from the inspected premises, neither Section 135 nor abetment under Section 150 is made out; the burden to prove that she was the "consumer" lies on the prosecution and is not shifted by Section 106.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The accused's residence at the premises was not proved. The accused's Aadhaar card recorded an address different from the inspected premises, and the prosecution produced no tenancy, ownership or consumption evidence tying her to them — on *Tata Power Delhi Distribution Ltd. v. Amit Bansal*, liability attaches only on proof that the accused was the actual consumer/user.

Section 106 did not cure the gap. The prosecution could not invoke Section 106 to shift onto the accused the burden of proving that she did *not* live there: on *Shambhu Nath Mehra* and *Satye Singh*, Section 106 is confined to facts within the accused's special knowledge and does not relieve the prosecution of its primary burden.

No user being fixed, abetment under Section 150 also failed. Abetment presupposes a principal offence by an identified user; the user/consumer never being established, there was no theft that the accused could be said to have abetted.

The cumulative doubt entitled the accused to acquittal. With the accused's Aadhaar showing a different address and no evidence that she resided at or consumed electricity from the inspected premises, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 read with Section 150 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define "dishonestly," Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user's identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then

governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — the accused’s Aadhaar showing a different address and no evidence that she resided at or consumed electricity from the inspected premises — the charge under Section 135 read with Section 150 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

An acquittal on identity of the consumer — the accused’s Aadhaar placed her elsewhere. Four propositions stand out:

- **Consumer status must be proved, not assumed.** Naming a person in the complaint is not proof that she is the consumer; a contrary identity document defeats the assumption (*Amit Bansal*).
- **Section 106 cannot plug a hole in the prosecution’s own case.** The onus to prove residence/consumption stays with the prosecution (*Shambhu Nath Mehra*; *Satye Singh*).
- **Abetment falls with the principal offence.** No identified user means no theft to abet under Section 150.
- **A different Aadhaar address is powerful exculpatory material.** The accused’s own official record placing her elsewhere raised a reasonable doubt the prosecution could not dispel.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Tata Power Delhi Distribution Ltd. v. Amit Bansal</i> Delhi HC	Liability under Section 135 attaches only on proof that the accused was the actual consumer/user of the inspected premises.	Relied on
<i>Shambhu Nath Mehra v. State of Ajmer</i> AIR 1956 SC 404	Section 106 is an exception confined to facts within the accused’s special knowledge and cannot be used to shift the prosecution’s burden onto the accused.	Relied on
<i>Satye Singh v. State of Uttarakhand</i> (2022) 5 SCC 438	Section 106 of the Evidence Act does not relieve the prosecution of its primary burden of proof; it applies only to facts especially within the accused’s knowledge.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.